

26STLC01478 26STLC01478

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Case Number: 26STLC01478 Hearing Date: August 17, 2026 Dept: 26

TENTATIVE RULING:

Cross-Complainants

Sara Ann Swanson and Nicholas Anthony Brown Bucci's Motion to Reclassify is granted.

This case is reclassified as an

unlimited civil case and transferred to the Reclassification/Transfer Desk for

collection of fees and reassignment to an Unlimited Civil Court. Cross-Complainants

are to pay the reclassification fee within ten (10) days of this order.

Analysis:

On March 5, 2026, Plaintiff RealtyWorld

Group ("Plaintiff") filed this action for breach of lease agreement against

Defendants Sara Ann Swanson and Nicholas Anthony Brown Bucci ("Defendants" or

"Cross-Complainants"). On May 15, 2026, Defendants filed the instant Motion to

Reclassify Case from Limited to Unlimited. They served the Motion on Plaintiff

through Attorney Jamie Kim, Esq. by electronic mail on the same day.

On May 18, 2026, Cross-Complainants

filed an Answer to the Complaint and a Cross-Complaint for breach of contract,

habitability violations, emotional distress, and related claims. Plaintiff

answered the Cross-Complaint on June 23, 2026, but has filed no opposition to

the instant Motion. Cross-Complainants filed a notice of non-opposition on

August 11, 2026.

Discussion

Cross-Complainants bring the instant Motion to Reclassify based

on the Cross-Complaint, which they contend is beyond the jurisdictional limit of the Limited Civil Court.

At the outset, the Court notes that Cross-Complainants could have had the case transferred without a motion under Code of Civil Procedure section 403.030(a) if they had paid the transfer and included the requisite language in the caption. Having failed to do so, however, this Motion is the next appropriate means.

The Motion to Reclassify is brought pursuant to Code of Civil Procedure sections 403.020 and 403.040. Only the latter section applies.

Section 403.020 states that when a party “files an amended complaint or other amended initial pleading that changes the jurisdictional classification from limited to unlimited,” they shall pay the reclassification fee and the clerk shall promptly reclassify the case. (Code Civ. Proc., § 403.020, subd. (a), emphasis added.) By its terms, section 403.020 is not grounds to reclassify the instant action on account of Defendants’ initial Cross-Complaint, which is not an amended pleading.

Section 403.040 allows a defendant or cross-defendant to file a motion for reclassification within the time allowed for that party to respond to the initial pleading. (Code Civ. Proc., § 403.040, subd. (a).) If the motion is made after the time for the defendant to respond to the initial pleading, the motion may only be granted if (1) the case is incorrectly classified; and (2) the defendant shows good cause for not seeking reclassification earlier. (Code Civ. Proc., § 403.040, subd. (b).) Good cause is not at issue because the Motion was filed before Cross-Complainants timely filed their Answer.

As to the correct classification, in *Walker v. Superior Court* (1991) 53 Cal.3d 257, the California Supreme Court held that a matter may be reclassified from unlimited to limited only if it appears to a legal certainty that the plaintiff’s damages will necessarily be less than the jurisdictional limit, that is \$35,000. (*Walker v. Superior Court* (1991) 53 Cal.3d 257, 262; Code Civ. Proc., § 85, subd. (a).) In *Ytuarte v. Superior Court* (2005) 129 Cal.App.4th 266, 278, the Court of Appeals examined the principles set forth in *Walker* and held that to reclassify in the opposite direction – from limited to unlimited – “the

court should reject the [movant]'s effort to reclassify the action as unlimited only when the lack of jurisdiction as an 'unlimited' case is certain and clear." (Id. at 279.) The moving party "must present evidence to demonstrate a possibility that the damages will exceed [the jurisdictional limit]. If a jurisdictionally appropriate verdict may result, (i.e., if such a verdict is not virtually unobtainable) the court should grant the motion to reclassify the case as "unlimited." (Ibid.)

The Court will grant the Motion. First, Cross-Complainants seek permanent injunctive relief under the California Business and Professions Code § 17200 et seq., which this Court cannot grant. (Code Civ. Proc., 86(a)(8).) For that reason the case is incorrectly classified. (Code Civ. Proc., § 403.040, subd. (b).) Second, it does not "appear[] to a legal certainty that the plaintiff's damages will necessarily be less than the jurisdictional limit." (See Ytuarte, 129 Cal.App.4th at 278.) The Cross-Complaint brings twelve causes of action seeking compensatory, statutory, and treble damages for claims including nuisance, breach of the implied warranty of habitability, retaliation, and constructive eviction for premises with a monthly rent of \$3,200 to \$4,100 over the duration of the parties' seven-year rental relationship. (See Cross-Compl., ¶¶12-15.; see also Compl., ¶5.) The Cross-Complaint also seeks exemplary and punitive damages for Intentional Infliction of Emotional Distress. The supporting declaration of Cross-Complainants' attorney asserts that the attorney has reviewed the pleadings and communications between the parties and asserts that Cross-Complainant's claims "aris[e] out of serious and ongoing residential habitability issues." (Azizz Decl., ¶¶3-4.) The Court will find this sufficient in this instance to demonstrate a possibility that damages on the Cross-Complaint could exceed the jurisdictional threshold. The Motion is unopposed and it appears that under the standard, doubts are resolved in favor of reassignment to an unlimited court because to do otherwise could unfairly cap a party's recovery. The Court is also mindful that if Cross-Complainants had attended to the requirements of § 403.030, this would not have had to be raised by motion.

Conclusion

Cross-Complainants

Sara Ann Swanson and Nicholas Anthony Brown Bucci's Motion to Reclassify is granted.

This case is reclassified as an unlimited civil case and transferred to the Reclassification/Transfer Desk for collection of fees and reassignment to an Unlimited Civil Court. Cross-Complainants are to pay the reclassification fee within ten (10) days of this order.

Moving party to give notice.